



CITY COUNCIL MEETING

Council Chambers

Thursday, December 21, 2023

MINUTES

1. **Call to Order and Roll Call:**

Mayor Brockett called the meeting to order at 6:00 p.m.

Council Members present: Adams, Benjamin, Brockett, Folkerts, Marquis,
Speer, Wallach, and Winer
Present virtually: Schuchard

- A. **National Homeless Persons' Memorial Day** Declaration presented by Council Member Folkerts
- B. Consideration of a motion to **approve the election returns from the 2023 Coordinated Municipal Election** held on November 2, 2023
 - 1. Motion to **convene as the General Canvassing and Election Board** for the City of Boulder Coordinated Municipal Election – **Benjamin, Folkerts, and Wallach**
 - 2. **Roll call** of the General Canvassing and Election Board
 - 3. **Administration of oath** and signing of same by Board members
 - 4. Consideration of a **motion nominating a member to chair the Board**
 - 5. **Submission of the following** to the Board found in Attachments:
 - A. **Certificate of the Public Notice** of the November 7, 2023 Election
 - B. **Certificate of Approved Ballot**
 - C. **Official Summary of Votes** - November 29th & December 6th Recount

D. **Boulder County Audit, Reconciliation Report and Certification** -
November 29th & December 6th Recount

E. **2023C Boulder County Canvass Certification Sign-Off Compiled** -
November 29th & December 6th Recount

6. Consideration of a motion to **approve the election returns** and, if approved, signing of the Certificate of the General Canvassing and Election Board
7. Motion to **adjourn from the General Canvassing and Election Board** for the City of Boulder Coordinated Municipal Election and **reconvene as the Boulder City Council**

2. **Open Comment:**

(Public comments are a summary of actual testimony. Full testimony is available on the council web page at: <https://bouldercolorado.gov/city-council> > Watch Live or Archived Meetings.)

Open Comment **opened** at 6:17 p.m.

➤ **In-Person (Council Chambers):**

1. Michele Rodriguez spoke on general topics
2. Tom Mayer spoke on Gaza
3. Evan Ravitz spoke on unhoused policies
4. Andrew O'Connor spoke on Gaza ceasefire
5. James Duncan spoke on Gaza ceasefire
6. Elise Mordos spoke on Council Member Adams social media postings
7. Aaron Brooks spoke on freedom of expression
8. Richard Forthofer spoke on Gaza ceasefire

➤ **Virtual:**

1. Lynn Segal spoke on Gaza ceasefire
2. ~~Dylan Williams~~ **did not show**
3. ~~Richard Forer~~ **withdrew**

Open Comment **closed** at 6:39 p.m.

3. **Consent Agenda**

- A. Consideration of a motion to **accept the September 7, 2023 Regular Council Meeting Minutes**
- B. Consideration of a motion to accept **the September 21, 2023 Regular City Council Meeting Minutes**
- C. Consideration of a motion to **accept the November 9, 2023 Study Session Summary regarding the Boards and Commissions Assessment Findings and Initial Recommendations**
- D. Consideration of a motion to **accept the 2024 City Council Board and Committee Assignments**
- E. Consideration of a motion to **adopt Resolution 1345 allowing for continuation of the Rocky Flats Stewardship Council** for three years
- F. **Introduction**, first reading, and consideration of a motion to order published by title only **Ordinance 8600, amending Title 9, "Land Use Code," B.R.C 1981, by repealing Chapter 9-14, "Residential Growth Management System," and deleting all references thereto;** and setting forth related details
- G. **Introduction**, first reading, and consideration of a motion to order published by title only **Ordinance 8617 repealing Section 2-3-8, "Library Commission," B.R.C. 1981, and removing references in the Boulder Revised Code to the library and libraries due to the formation of the Boulder Public Library District;** and setting forth related details
- H. Consideration of the **following items related to a petition to annex a property at 5691 S. Boulder Road** with an initial zoning designation of Residential – Low 2 (RL-2) (LUR2020-00057):

Consideration of a motion to **adopt Resolution 1343 finding the annexation petition to annex approximately 5.3-acres of land in compliance with state statutes** and establishing February 1, 2024 as the date for a public hearing

AND

Introduction, first reading and consideration of a motion to order published by title only, **Ordinance 8618, annexing to the City of Boulder approximately 5.3-acres of land**, with an initial zoning designation of Residential – Low 2 (RL-2) as described in Chapter 9-5, "Modular Zone System," B.R.C. 1981; amending the Zoning District Map forming a part of said Chapter to include said land in the above-mentioned zoning district; and setting forth related details

- I. **Introduction**, first reading and consideration of a motion to order published by title only and **adopt by emergency measure Ordinance 8619 adopting Supplement 157 which codifies previously adopted ordinances, Appendix Council**

Procedures, and other miscellaneous corrections and amendments, as amendments to the Boulder Revised Code, 1981; and setting forth related details

- J. Consideration of a motion to **adjourn as the Boulder City Council and convene as the Central Area General Improvement District (CAGID) Board of Directors and consideration of a motion to adopt Resolution 311** reestablishing the CAGID 2023 Property Tax Mill Levy.

Consideration of a motion to **adjourn as the Central Area General Improvement District (CAGID) Board of Directors and convene as the University Hill General Improvement District Fund (UHGID) Board of Directors**

- K. Consideration of a motion to **adopt Resolution 227** reestablishing the UHGID 2023 Property Tax Mill Levy

Consideration of a motion to adjourn as the **University Hill General Improvement District (UHGID) Board of Directors and convene as the Forest Glen Transit Pass General Improvement District Board of Directors**

- L. Consideration of a motion to adopt **Resolution 78** reestablishing the Forest Glen Transit Pass General Improvement District 2023 Property Tax Mill Levy

Consideration of a motion to **adjourn from the City of Boulder Forest Glen Transit Pass General Improvement District Board of Directors, and reconvene as the Boulder City Council**

Motion	Made By/Seconded	Vote
Motion to PASS Consent Agenda Items A-L	Benjamin/Wallach	Approved 9:0

4. **Call-Up Check-In**

- A. **Use Review to allow for the Jarrow Montessori Elementary School to replace the former Harmony Pre-School at 3990 15th Street** within the Residential - Estate (RE) zoning district. The proposal includes a request for a 25% parking reduction to allow for six parking spaces where eight spaces would otherwise be required **Reviewed under case number LUR2023-00025**

NO ACTION

Chandler Van Schaack, City Planner Principal provided background information and answered questions from council.

- B. **Site Review for the development of the site located at 5691 S. Boulder Rd. with fifteen (15) new homes on the western half of the site and one (1) new home in the general location of the existing (currently vacant) single family home at the**

east end of the site. The project proposes six of the new homes as permanently affordable middle-income Cottage Homes (approx.1,300 sf each), three of them as “Market Rate Attainable” Cottage Homes (1,300 – 1,500 sf each) and six of them as market rate single-family detached homes (2,800 – 2,900 sf each) with detached ADUs. **Reviewed under case no. (LUR2020-00058)**

NO ACTION

Chandler Van Schaack, City Planner Principal, provided background information and answered questions from council.

- C. Consideration of a **Landmark Alteration Certificate application to construct a perimeter wall and fence and other hardscaping at 946 Spruce St.** a contributing house in the Mapleton Hill Historic District, pursuant to Section 9-11-18 of the Boulder Revised Code 1981

NO ACTION

5. Public Hearings

- A. Consideration of a motion to **approve amendments to the Boulder Valley Comprehensive Plan (BVCP) Land Use Map** related to Boulder Junction Phase 2 Implementation

The public hearing **opened** at 7:42 p.m. and the following spoke:

➤ **Virtual:**

1. Lynn Segal

The public hearing **closed** at 7:45 p.m.

Kristofer Johnson, Comprehensive Planning Manager Senior and Christopher Ranglos, City Planner Senior, provided a presentation and answered questions from council.

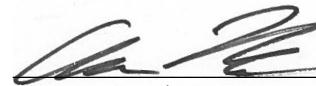
Motion	Made By/Seconded	Vote
Motion to approve amendments to the Boulder Valley Comprehensive Plan (BVCP) Land Use Map related to Boulder Junction Phase 2 Implementation	Folkerts / Winer	Approved 9:0

6. Matters from the City Manager
7. Matters from the City Attorney
8. Matters from the Mayor and Members of Council
9. Discussion Items
10. Debrief
11. Adjournment

There being no further business to come before Council at this time, by motion regularly adopted, the meeting was adjourned by Mayor Brockett at 7:58 p.m.

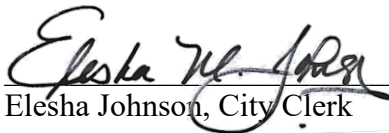
Approved this 1st day of February 2024.

APPROVED BY:



Aaron Brockett, Mayor

ATTEST:


Elesha Johnson, City Clerk